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The Department argues that a tradition *against* state support for religious schools arose in the second half of the 19th century, as more than 30 States—including Montana—adopted no-aid provisions. See Brief for Respondents 40–42 and App. D. Such a development, of course, cannot by itself establish an early American tradition. JUSTICE SOTOMAYOR questions our reliance on aid provided during the same era by the Freedmen’s Bureau, *post*, at 547 (dissenting opinion), but we see no inconsistency in recognizing that such evidence may reinforce an early practice but cannot create one. In addition, many of the no-aid provisions belong to a more checkered tradition shared with the Blaine Amendment of the 1870s. That proposal—which Congress nearly passed—would have added to the Federal Constitution a provision similar to the state no-aid provisions, prohibiting States from aiding “sectarian” schools. See *Mitchell v. Helms*, 530 U.S. 793, 828 (2000) (plurality opinion). “[I]t was an open secret that ‘sectarian’ was code for ‘Catholic.’” *Ibid.*; see Jorgenson, *supra*, at 70. The Blaine Amendment was “born of bigotry” and “arose at a time of pervasive hostility to the Catholic Church and to Catholics in general”; many of its state counterparts have a similarly “shameful pedigree.” *Mitchell*, 530 U.S., at 828–829 (plurality opinion); see Jorgenson, *supra*, at 69–70, 216; Jeffries & Ryan, A Political History of the Establishment Clause, 100 Mich. L. Rev. 279, 301–305 (2001). The no-aid provisions of the 19th century hardly evince a tradition that should inform our understanding of the Free Exercise Clause.

The Department argues that several States have rejected referendums to overturn or limit their no-aid provisions, and that Montana even re-adopted its own in the 1970s, for reasons unrelated to anti-Catholic bigotry. See Brief for Respondents 20, 42. But, on the other side of the ledger, many States today—including those with no-aid provisions—provide support to religious schools through vouchers, scholarships, tax credits, and other measures. See Brief for Okla-

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homa et al. as *Amici Curiae* 29–31, 33–35; Brief for Petitioners 5. According to petitioners, 20 of 37 States with no-aid provisions allow religious options in publicly funded scholarship programs, and almost all allow religious options in tax credit programs. Reply Brief 22, n. 9.

All to say, we agree with the Department that the historical record is “complex.” Brief for Respondents 41. And it is true that governments over time have taken a variety of approaches to religious schools. But it is clear that there is no “historic and substantial” tradition against aiding such schools comparable to the tradition against state-supported clergy invoked by *Locke*.

C

Two dissenters would chart new courses. JUSTICE SOTOMAYOR would grant the government “some room” to “single . . . out” religious entities “for exclusion,” based on what she views as “the interests embodied in the Religion Clauses.” *Post*, at 545, 546 (quoting *Trinity Lutheran*, 582 U. S., at 478, 479 (SOTOMAYOR, J., dissenting)). JUSTICE BREYER, building on his solo opinion in *Trinity Lutheran*, would adopt a “flexible, context-specific approach” that “may well vary” from case to case. *Post*, at 533, 534–535; see *Trinity Lutheran*, 582 U. S., at 470–471 (BREYER, J., concurring in judgment). As best we can tell, courts applying this approach would contemplate the particular benefit and restriction at issue and discern their relationship to religion and society, taking into account “context and consequences measured in light of [the] purposes” of the Religion Clauses. *Post*, at 534–536, 538 (opinion of BREYER, J.) (quoting *Van Orden v. Perry*, 545 U. S. 677, 700 (2005) (BREYER, J., concurring in judgment)). What is clear is that JUSTICE BREYER would afford much freer rein to judges than our current regime, arguing that “there is ‘no test-related substitute for the exercise of legal judgment.’” *Post*, at 538 (quoting *Van Orden*, 545 U. S., at 700 (opinion of BREYER, J.)).

The simplest response is that these dissents follow from prior separate writings, not from the Court’s decision in

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Trinity Lutheran or the decades of precedent on which it relied. These precedents have “repeatedly confirmed” the straightforward rule that we apply today: When otherwise eligible recipients are disqualified from a public benefit “solely because of their religious character,” we must apply strict scrutiny. *Trinity Lutheran*, 582 U. S., at 458–462. This rule against express religious discrimination is no “doctrinal innovation.” *Post*, at 532 (opinion of BREYER, J.). Far from it. As *Trinity Lutheran* explained, the rule is “unremarkable in light of our prior decisions.” 582 U. S., at 462.

For innovation, one must look to the dissents. Their “room[y]” or “flexible” approaches to discrimination against religious organizations and observers would mark a significant departure from our free exercise precedents. The protections of the Free Exercise Clause do not depend on a “judgment-by-judgment analysis” regarding whether discrimination against religious adherents would somehow serve ill-defined interests. Cf. *Medellín v. Texas*, 552 U. S. 491, 514 (2008).

D

Because the Montana Supreme Court applied the no-aid provision to discriminate against schools and parents based on the religious character of the school, the “strictest scrutiny” is required. *Supra*, at 475, 478 (quoting *Trinity Lutheran*, 582 U. S., at 463). That “stringent standard,” *id.*, at 466, is not “watered down but really means what it says,” *Lukumi*, 508 U. S., at 546 (internal quotation marks and alterations omitted). To satisfy it, government action “must advance ‘interests of the highest order’ and must be narrowly tailored in pursuit of those interests.” *Ibid.* (quoting *McDaniel*, 435 U. S., at 628).

The Montana Supreme Court asserted that the no-aid provision serves Montana’s interest in separating church and state “more fiercely” than the Federal Constitution. 393 Mont., at 467, 435 P. 3d, at 614. But “that interest cannot qualify as compelling” in the face of the infringement of free

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exercise here. *Trinity Lutheran*, 582 U. S., at 466. A State’s interest “in achieving greater separation of church and State than is already ensured under the Establishment Clause . . . is limited by the Free Exercise Clause.” *Ibid.* (quoting *Widmar v. Vincent*, 454 U. S. 263, 276 (1981)).

The Department, for its part, asserts that the no-aid provision actually *promotes* religious freedom. In the Department’s view, the no-aid provision protects the religious liberty of taxpayers by ensuring that their taxes are not directed to religious organizations, and it safeguards the freedom of religious organizations by keeping the government out of their operations. See Brief for Respondents 17–23. An infringement of First Amendment rights, however, cannot be justified by a State’s alternative view that the infringement advances religious liberty. Our federal system prizes state experimentation, but not “state experimentation in the suppression of free speech,” and the same goes for the free exercise of religion. *Boy Scouts of America v. Dale*, 530 U. S. 640, 660 (2000).

Furthermore, we do not see how the no-aid provision promotes religious freedom. As noted, this Court has repeatedly upheld government programs that spend taxpayer funds on equal aid to religious observers and organizations, particularly when the link between government and religion is attenuated by private choices. A school, concerned about government involvement with its religious activities, might reasonably decide for itself not to participate in a government program. But we doubt that the school’s liberty is enhanced by eliminating any option to participate in the first place.

The Department’s argument is especially unconvincing because the infringement of religious liberty here broadly affects both religious schools and adherents. Montana’s no-aid provision imposes a categorical ban—“broadly and strictly” prohibiting “*any* type of aid” to religious schools. 393 Mont., at 462–463, 435 P. 3d, at 611. This prohibition is

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far more sweeping than the policy in *Trinity Lutheran*, which barred churches from one narrow program for playground resurfacing—causing “in all likelihood” only “a few extra scraped knees.” 582 U. S., at 467.

And the prohibition before us today burdens not only religious schools but also the families whose children attend or hope to attend them. Drawing on “enduring American tradition,” we have long recognized the rights of parents to direct “the religious upbringing” of their children. *Wisconsin v. Yoder*, 406 U. S. 205, 213–214, 232 (1972). Many parents exercise that right by sending their children to religious schools, a choice protected by the Constitution. See *Pierce v. Society of Sisters*, 268 U. S. 510, 534–535 (1925). But the no-aid provision penalizes that decision by cutting families off from otherwise available benefits if they choose a religious private school rather than a secular one, and for no other reason.

The Department also suggests that the no-aid provision advances Montana’s interests in public education. According to the Department, the no-aid provision safeguards the public school system by ensuring that government support is not diverted to private schools. See Brief for Respondents 19, 25. But, under that framing, the no-aid provision is fatally underinclusive because its “proffered objectives are not pursued with respect to analogous nonreligious conduct.” *Lukumi*, 508 U. S., at 546. On the Department’s view, an interest in public education is undermined by diverting government support to *any* private school, yet the no-aid provision bars aid only to *religious* ones. A law does not advance “an interest of the highest order when it leaves appreciable damage to that supposedly vital interest unprohibited.” *Id.*, at 547 (internal quotation marks and alterations omitted). Montana’s interest in public education cannot justify a no-aid provision that requires only religious private schools to “bear [its] weight.” *Ibid.*

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A State need not subsidize private education. But once a State decides to do so, it cannot disqualify some private schools solely because they are religious.

III

The Department argues that, at the end of the day, there is no free exercise violation here because the Montana Supreme Court ultimately eliminated the scholarship program altogether. According to the Department, now that there is no program, religious schools and adherents cannot complain that they are excluded from any generally available benefit.

Two dissenters agree. JUSTICE GINSBURG reports that the State of Montana simply chose to “put all private school parents in the same boat” by invalidating the scholarship program, *post*, at 519, and JUSTICE SOTOMAYOR describes the decision below as resting on state law grounds having nothing to do with the federal Free Exercise Clause, see *post*, at 538, 543.

The descriptions are not accurate. The Montana Legislature created the scholarship program; the legislature never chose to end it, for policy or other reasons. The program was eliminated by a court, and not based on some innocuous principle of state law. Rather, the Montana Supreme Court invalidated the program pursuant to a state law provision that expressly discriminates on the basis of religious status. The Court applied that provision to hold that religious schools were barred from participating in the program. Then, seeing no other “mechanism” to make absolutely sure that religious schools received no aid, the court chose to invalidate the entire program. 393 Mont., at 466–468, 435 P. 3d, at 613–614.

The final step in this line of reasoning eliminated the program, to the detriment of religious and non-religious schools alike. But the Court’s error of federal law occurred at the beginning. When the Court was called upon to apply a state

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law no-aid provision to exclude religious schools from the program, it was obligated by the Federal Constitution to reject the invitation. Had the Court recognized that this was, indeed, “one of those cases” in which application of the no-aid provision “would violate the Free Exercise Clause,” *id.*, at 468, 435 P. 3d, at 614, the Court would not have proceeded to find a violation of that provision. And, in the absence of such a state law violation, the Court would have had no basis for terminating the program. Because the elimination of the program flowed directly from the Montana Supreme Court’s failure to follow the dictates of federal law, it cannot be defended as a neutral policy decision, or as resting on adequate and independent state law grounds.⁴

The Supremacy Clause provides that “the Judges in every State shall be bound” by the Federal Constitution, “any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.” Art. VI, cl. 2. “[T]his Clause creates a rule of decision” directing state courts that they “must not give effect to state laws that conflict with federal law[.]” *Armstrong v. Exceptional Child Center, Inc.*, 575 U. S. 320, 324 (2015). Given the conflict between the Free Exercise Clause and the application of the no-aid provision here, the Montana Supreme Court should have “disregard[ed]” the no-aid provision and decided this case “conformably to the [C]onstitution” of the United States. *Marbury v. Madison*, 1 Cranch 137, 178 (1803). That “*supreme* law of the land” condemns discrimination against religious schools and the families whose children attend them. *Id.*, at 180. They are

⁴JUSTICE SOTOMAYOR worries that, in light of our decision, the Montana Supreme Court must “order the State to recreate” a scholarship program that “no longer exists.” *Post*, at 544 (dissenting opinion). But it was the Montana Supreme Court that eliminated the program, in the decision below, which remains under review. Our reversal of that decision simply restores the status quo established by the Montana Legislature before the Court’s error of federal law. We do not consider any alterations the Legislature may choose to make in the future.

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“member[s] of the community too,” and their exclusion from the scholarship program here is “odious to our Constitution” and “cannot stand.” *Trinity Lutheran*, 582 U. S., at 463, 467.⁵

* * *

The judgment of the Montana Supreme Court is reversed, and the case is remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

The Court correctly concludes that Montana’s no-aid provision expressly discriminates against religion in violation of the Free Exercise Clause. And it properly provides relief to Montana religious schools and the petitioners who wish to use Montana’s scholarship program to send their children to such schools. I write separately to explain how this Court’s interpretation of the Establishment Clause continues to hamper free exercise rights. Until we correct course on that interpretation, individuals will continue to face needless obstacles in their attempts to vindicate their religious freedom.

I

A

This case involves the Free Exercise Clause, not the Establishment Clause. But as in all cases involving a state actor, the modern understanding of the Establishment Clause is a “brooding omnipresence,” *Southern Pacific Co. v. Jensen*, 244 U. S. 205, 222 (1917) (Holmes, J., dissenting), ever ready to be used to justify the government’s infringement on religious freedom. Under the modern, but erroneous, view

⁵ In light of this holding, we do not address petitioners’ claims that the no-aid provision, as applied, violates the Equal Protection Clause or the Establishment Clause.

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of the Establishment Clause, the government must treat all religions equally and treat religion equally to nonreligion. As this Court stated in its first case applying the Establishment Clause to the States, the government cannot “pass laws which aid one religion, aid all religions, or prefer one religion over another.” *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 15 (1947); see also *post*, at 521–522 (BREYER, J., dissenting). This “equality principle,” the theory goes, prohibits the government from expressing any preference for religion—or even permitting any signs of religion in the governmental realm. Thus, when a plaintiff brings a free exercise claim, the government may defend its law, as Montana did here, on the ground that the law’s restrictions are *required* to prevent it from “establishing” religion.

This understanding of the Establishment Clause is unmoored from the original meaning of the First Amendment. As I have explained in previous cases, at the founding, the Clause served only to “protect[] States, and by extension their citizens, from the imposition of an established religion by the Federal Government.” *Zelman v. Simmons-Harris*, 536 U. S. 639, 678 (2002) (concurring opinion) (emphasis added); see also, *e. g.*, *Town of Greece v. Galloway*, 572 U. S. 565, 604–607 (2014) (opinion concurring in part and concurring in judgment); *Elk Grove Unified School Dist. v. Newdow*, 542 U. S. 1, 49–50 (2004) (opinion concurring in judgment). Under this view, the Clause resists incorporation against the States. See *Town of Greece*, 572 U. S., at 604 (opinion of THOMAS, J.).

There is mixed historical evidence concerning whether the Establishment Clause was understood as an individual right at the time of the Fourteenth Amendment’s ratification. *Id.*, at 607–608. Even assuming that the Clause creates a right and that such a right could be incorporated, however, it would only protect against an “establishment” of religion as understood at the founding, *i. e.*, “coercion of religious orthodoxy and of financial support by force of law and threat

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of penalty.’” *Id.*, at 608 (quoting *Lee v. Weisman*, 505 U.S. 577, 640 (1992) (Scalia, J., dissenting); emphasis deleted); *American Legion v. American Humanist Assn.*, 588 U.S. 29, 75–76 (2019) (THOMAS, J., concurring in judgment); see also McConnell, Establishment and Disestablishment at the Founding, Part I: Establishment of Religion, 44 Wm. & Mary L. Rev. 2105, 2131–2181 (2003); McConnell, Coercion: The Lost Element of Establishment, 27 Wm. & Mary L. Rev. 933, 936–939 (1986).¹

Thus, the modern view, which presumes that States must remain both completely separate from and virtually silent on matters of religion to comply with the Establishment Clause, is fundamentally incorrect. Properly understood, the Establishment Clause does not prohibit States from favoring religion. They can legislate as they wish, subject only to the limitations in the State and Federal Constitutions. See Muñoz, The Original Meaning of the Establishment Clause and the Impossibility of Its Incorporation, 8 U. Pa. J. Const. L. 585, 632 (2006).

B

I have previously made these points in Establishment Clause cases to show that the Clause likely has no application to the States or, if it is capable of incorporation, that the Court employs a far broader test than the Clause’s original meaning. See, e.g., *American Legion*, 588 U.S., at 73–74 (opinion concurring in judgment); *Town of Greece*, 572 U.S., at 604 (opinion concurring in part and concurring in judgment). But the Court’s wayward approach to the Establishment Clause also impacts its free exercise jurisprudence. Specifically, its overly expansive understanding of the former

¹ A party wishing to expand the scope of the Establishment Clause beyond its meaning at the founding carries the burden of demonstrating that this broader reading is historically sound. *Town of Greece v. Galloway*, 572 U.S. 565, 607–608 (2014) (THOMAS, J., concurring in part and concurring in judgment).

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Clause has led to a correspondingly cramped interpretation of the latter.

Under this Court's current approach, state and local governments may rely on the Establishment Clause to justify policies that others wish to challenge as violations of the Free Exercise Clause. Once the government demonstrates that its policy is *required* for compliance with the Constitution, any claim that the policy infringes on free exercise cannot survive. A few examples suffice to illustrate this practice.

Of most relevance to this case is *Locke v. Davey*, 540 U. S. 712 (2004), which Montana principally relies on to justify its discriminatory law. In *Locke*, the Court held that prohibiting a student from using a generally available state scholarship to pursue a degree in devotional theology did not violate the student's free exercise rights. This was so, the Court said, in part because it furthered the State's "antiestablishment interests" in avoiding the education of religious ministers. *Id.*, at 722. But no antiestablishment interests, properly understood, were at issue in *Locke*. The State neither coerced students to study devotional theology nor conscripted taxpayers into supporting any form of orthodoxy. Thus, as I have explained, *Locke* incorrectly interpreted the Establishment Clause and should not impact free exercise challenges. *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449, 468 (2017) (opinion concurring in part). Yet, as Montana's proffered justification for its law shows, governments continue to rely on *Locke*'s improper understanding of "antiestablishment interests" to defend against free exercise challenges. See Brief for State of Colorado et al. as *Amici Curiae* 3, 10–12 (arguing that *Locke* justifies the 38 state constitutional provisions that are similar to Montana's); see also *Trinity Lutheran Church of Columbia, Inc. v. Pauley*, 788 F. 3d 779, 785 (CA8 2015), rev'd and remanded, 582 U. S. 449; *Eulitt v. Maine*, 386 F. 3d 344, 354 (CA1 2004); *post*, at 524–527 (BREYER, J., dissenting); *post*, at 546–548 (SOTOMAYOR, J., dissenting).

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The Court has also repeatedly stated that a government has a compelling interest in avoiding an Establishment Clause violation altogether, which “may justify” abridging other First Amendment freedoms. See *Good News Club v. Milford Central School*, 533 U.S. 98, 112 (2001); *Lamb’s Chapel v. Center Moriches Union Free School Dist.*, 508 U.S. 384, 394 (1993); *Widmar v. Vincent*, 454 U.S. 263, 271 (1981). Unsurprisingly, governmental employers have relied on these pronouncements to defeat challenges from employees who alleged violations of their First Amendment rights. See, e.g., *Berry v. Department of Social Servs.*, 447 F. 3d 642, 650–651 (CA9 2006); *Knight v. Connecticut Dept. of Public Health*, 275 F. 3d 156, 166 (CA2 2001); *Marchi v. Board of Cooperative Ed. Servs. of Albany*, 173 F. 3d 469, 475 (CA2 1999).

Finally, this Court’s infamous test in *Lemon v. Kurtzman*, 403 U.S. 602 (1971), has sometimes been understood to prohibit governmental practices that have the effect of endorsing religion. See *Lynch v. Donnelly*, 465 U.S. 668, 692 (1984) (O’Connor, J., concurring). This, too, presupposes that the Establishment Clause prohibits the government from favoring religion or taking steps to promote it. But as described *supra*, at 490–491, the Establishment Clause does nothing of the sort. The concern with avoiding endorsement has nevertheless been used to prohibit voluntary practices that potentially implicate free exercise rights, with courts and governments going so far as to make the “remarkable” suggestion “that even while off duty, a teacher or coach cannot engage in any outward manifestation of religious faith.” *Kennedy v. Bremerton School Dist.*, 586 U.S. 1130, 1133 (2019) (ALITO, J., statement respecting denial of certiorari); see *Santa Fe Independent School Dist. v. Doe*, 530 U.S. 290, 308 (2000) (voluntary decision to begin football games with a prayer violated the Establishment Clause); see also *Kennedy v. Bremerton School Dist.*, 869 F. 3d 813, 831 (CA9 2017) (M. Smith, J., concurring) (coach’s decision to lead voluntary

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prayer after football games); *Walz v. Egg Harbor Twp. Bd. of Ed.*, 342 F. 3d 271, 280 (CA3 2003) (student's decision to distribute small gifts with religious messages to classmates).

II

The Court's current understanding of the Establishment Clause actually thwarts, rather than promotes, equal treatment of religion. Under a proper understanding of the Establishment Clause, robust and lively debate about the role of religion in government is permitted, even encouraged, at the state and local level. The Court's distorted view of the Establishment Clause, however, removes the entire subject of religion from the realm of permissible governmental activity, instead mandating strict separation.

This interpretation of the Establishment Clause operates as a type of content-based restriction on the government. The Court has interpreted the Free Speech Clause to prohibit content-based restrictions because they "value some forms of speech over others," *City of Ladue v. Gilleo*, 512 U. S. 43, 60 (1994) (O'Connor, J., concurring), thus tending to "tilt public debate in a preferred direction," *Sorrell v. IMS Health Inc.*, 564 U. S. 552, 578–579 (2011). The content-based restriction imposed by this Court's Establishment Clause jurisprudence operates no differently. It communicates a message that religion is dangerous and in need of policing, which in turn has the effect of tilting society in favor of devaluing religion.

Historical evidence suggests that many advocates for this separationist view were originally motivated by hostility toward certain disfavored religions. See P. Hamburger, *Separation of Church and State* 391–454 (2002). And this Court's adoption of a separationist interpretation has itself sometimes bordered on religious hostility. Justice Black, well known for his role in formulating the Court's modern Establishment Clause jurisprudence, once described Catholic petitioners as "powerful sectarian religious propagandists"

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“looking toward complete domination and supremacy” of their “preferences and prejudices.” *Board of Ed. of Central School Dist. No. 1 v. Allen*, 392 U. S. 236, 251 (1968) (dissenting opinion). Other Members of the Court have characterized religions as “divisive forces.” *Edwards v. Aguillard*, 482 U. S. 578, 584 (1987) (internal quotation marks omitted); *Board of Ed. of Westside Community Schools (Dist. 66) v. Mergens*, 496 U. S. 226, 287 (1990) (Stevens, J., dissenting) (internal quotation marks omitted); *Illinois ex rel. McCollum v. Board of Ed. of School Dist. No. 71, Champaign Cty.*, 333 U. S. 203, 231 (1948) (Frankfurter, J., concurring). And the Court once described a statute permitting employees to request accommodations to avoid work on the Sabbath as “arm[ing]” religious employees with the “absolute and unqualified right” to pursue their religion “over all other interests.” *Estate of Thornton v. Caldor, Inc.*, 472 U. S. 703, 709–711 (1985). The siren song of religion is apparently so strong that we once held that public school teachers cannot provide assistance at parochial schools, lest they “subtly (or overtly) conform their instruction to the environment in which they teach.” *School Dist. of Grand Rapids v. Ball*, 473 U. S. 373, 388 (1985), overruled by *Agostini v. Felton*, 521 U. S. 203, 235 (1997). In the Court’s view, “[t]he ‘atmosphere’ of a Catholic school ha[d] such power to influence the unsuspecting mind that it may move even public school . . . specialists to ‘conform’—though their only contact with the school is to walk down its halls.” McConnell, Religious Freedom at a Crossroads, 59 U. Chi. L. Rev. 115, 122 (1992).

Although such hostility may not be overtly expressed by the Court any longer, manifestations of this “trendy disdain for deep religious conviction” assuredly live on. *Locke*, 540 U. S., at 733 (Scalia, J., dissenting). They are evident in the fact that, unlike other constitutional rights, the mere exposure to religion can render an “‘offended observer’” sufficiently injured to bring suit against the government, *American Legion*, 588 U. S., at 80 (GORSUCH, J., concurring in

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judgment), even if he has not been coerced in any way to participate in a religious practice, *Lee*, 505 U. S., at 584; *Engel v. Vitale*, 370 U. S. 421, 430 (1962).² We also see them in the special privilege of taxpayer standing in Establishment Clause challenges, even though such suits directly contravene Article III's restrictions on standing. See *Hein v. Freedom From Religion Foundation, Inc.*, 551 U. S. 587, 618 (2007) (Scalia, J., concurring in judgment); see also *Bowen v. Kendrick*, 487 U. S. 589, 618–620 (1988); *Flast v. Cohen*, 392 U. S. 83, 102–104 (1968). And they persist in the repeated denigration of those who continue to adhere to traditional moral standards, as well as laws even remotely influenced by such standards, as outmoded at best and bigoted at worst. See *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm'n*, 584 U. S. 617, 667 (2018) (THOMAS, J., concurring in part and concurring in judgment); *Obergefell v. Hodges*, 576 U. S. 644, 712 (2015) (ROBERTS, C. J., dissenting). So long as this hostility remains, fostered by our distorted understanding of the Establishment Clause, free exercise rights will continue to suffer.

* * *

As I have recently explained, this Court has an unfortunate tendency to prefer certain constitutional rights over others. See *United States v. Sineneng-Smith*, 590 U. S. 371, 387–388 (2020) (THOMAS, J., concurring). The Free Exercise Clause, although enshrined explicitly in the Constitution, rests on the lowest rung of the Court's ladder of rights, and precariously so at that. Returning the Establishment Clause to its proper scope will not completely rectify the Court's disparate treatment of constitutional rights, but it will go a long

²This stands in striking contrast to the Court's view in the free speech context that “the burden normally falls upon the viewer” to avoid offense “simply by averting his eyes.” *Hill v. Colorado*, 530 U. S. 703, 753, n. 3 (2000) (Scalia, J., dissenting) (quoting *Erznoznik v. Jacksonville*, 422 U. S. 205, 210–211 (1975) (quotation altered)).

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way toward allowing free exercise of religion to flourish as the Framers intended. I look forward to the day when the Court takes up this task in earnest.

JUSTICE ALITO, concurring.

I join the opinion of the Court in full. The basis of the decision below was a Montana constitutional provision that, according to the Montana Supreme Court, prohibits parents from participating in a publicly funded scholarship program simply because they send their children to religious schools. Regardless of the motivation for this provision or its predecessor, its application here violates the Free Exercise Clause.

Nevertheless, the provision's origin is relevant under the decision we issued earlier this Term in *Ramos v. Louisiana*, 590 U. S. 83 (2020). The question in *Ramos* was whether Louisiana and Oregon laws allowing non-unanimous jury verdicts in criminal trials violated the Sixth Amendment. The Court held that they did, emphasizing that the States originally adopted those laws for racially discriminatory reasons. See *id.*, at 87–89. The role of the Ku Klux Klan was highlighted. See *ibid.*; see also *id.*, at 114–115 (SOTOMAYOR, J., concurring in part); *id.*, at 126–127 (KAVANAUGH, J., concurring in part).

I argued in dissent that this original motivation, though deplorable, had no bearing on the laws' constitutionality because such laws can be adopted for non-discriminatory reasons, and "both States readopted their rules under different circumstances in later years." *Id.*, at 142. But I lost, and *Ramos* is now precedent. If the original motivation for the laws mattered there, it certainly matters here.

The origin of Montana's "no-aid" provision, Mont. Const., Art. X, §6(1) (1972), is emphasized in petitioners' brief and in the briefs of numerous supporting *amici*. See Brief for Petitioners 31–45; Brief for United States as *Amicus Curiae* 1–2, 25; Brief for Center for Constitutional Jurisprudence as *Amicus Curiae* 10–12; Brief for Pioneer Institute, Inc., as *Amicus Curiae* 5–17; Brief for Cato Institute as *Amicus Cu-*

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riae 2; Brief for State of Oklahoma et al. as *Amici Curiae* 16; Brief for Montana Catholic School Parents et al. as *Amici Curiae* 21–25; Brief for Senator Steve Daines et al. as *Amici Curiae* 1–27 (Sen. Daines Brief); Brief for Becket Fund for Religious Liberty as *Amicus Curiae* 4–20 (Becket Fund Brief); Brief for the Rutherford Institute as *Amicus Curiae* 2–10; Brief for Georgia Goal Scholarship Program, Inc., as *Amicus Curiae* 1–5, 16–21; Brief for Liberty Justice Center et al. as *Amici Curiae* 16–17; Brief for Alliance for Choice in Education as *Amicus Curiae* 4–8; Brief for Independence Institute as *Amicus Curiae* 4–26 (Independence Institute Brief); Brief for Jewish Coalition for Religious Liberty as *Amicus Curiae* 1–5; Brief for Rusty Bowers et al. as *Amici Curiae* 8–9; Brief for Center for Education Reform et al. as *Amici Curiae* 21–27 (CER Brief); Brief for Montana Family Foundation as *Amicus Curiae* 9–13; Brief for Arizona Christian School Tuition Organization et al. as *Amici Curiae* 14–22; Brief for Justice and Freedom Fund et al. as *Amici Curiae* 22–23; Brief for 131 Current and Former State Legislators as *Amici Curiae* 2–10.

These briefs, most of which were not filed by organizations affiliated with the Catholic Church, point out that Montana’s provision was modeled on the failed Blaine Amendment to the Constitution of the United States. Named after House Speaker James Blaine, the Congressman who introduced it in 1875, the amendment was prompted by virulent prejudice against immigrants, particularly Catholic immigrants. In effect, the amendment would have “bar[red] any aid” to Catholic and other “sectarian” schools. *Mitchell v. Helms*, 530 U. S. 793, 828 (2000) (plurality opinion). As noted in a publication from the United States Commission on Civil Rights, a prominent supporter of this ban was the Ku Klux Klan.¹

The Blaine Amendment was narrowly defeated, passing in the House but falling just short of the two-thirds majority

¹See U. S. Commission on Civil Rights, *School Choice: The Blaine Amendments & Anti-Catholicism* 36 (2007).

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needed in the Senate to refer the amendment to the States. See 4 Cong. Rec. 5191–5192 (1876) (House vote); *id.*, at 5595 (28 yeas, 16 nays in the Senate). Afterwards, most States adopted provisions like Montana’s to achieve the same objective at the state level, often as a condition of entering the Union. Thirty-eight States still have these “little Blaine Amendments” today. See App. D to Brief for Respondents.

This history is well-known and has been recognized in opinions of this Court. See, e. g., *Locke v. Davey*, 540 U. S. 712, 723, n. 7 (2004); *Mitchell*, 530 U. S., at 828–829 (plurality opinion); see also *ante*, at 482; *Zelman v. Simmons-Harris*, 536 U. S. 639, 720–721 (2002) (BREYER, J., dissenting). But given respondents’ and one dissent’s efforts to downplay it in contravention of *Ramos*, see Brief for Respondents 16–23; *post*, at 542, n. 2 (SOTOMAYOR, J., dissenting), it deserves a brief retelling.

A wave of immigration in the mid-19th century, spurred in part by potato blights in Ireland and Germany, significantly increased this country’s Catholic population.² Nativist fears increased with it. An entire political party, the Know Nothings, formed in the 1850s “to decrease the political influence of immigrants and Catholics,” gaining hundreds of seats in Federal and State Government.³

Catholics were considered by such groups not as citizens of the United States, but as “soldiers of the Church of Rome,”⁴ who “would attempt to subvert representative government.”⁵ Catholic education was a particular concern. As one series of newspaper articles argued, “Popery is the natural enemy of *general* education. . . . If it is establishing schools, it is to make them *prisons* of the youthful intellect

² See T. Anbinder, *Nativism and Slavery: The Northern Know Nothings and the Politics of the 1850s*, pp. 6–8 (1992).

³ *Id.*, at 127–128, 135.

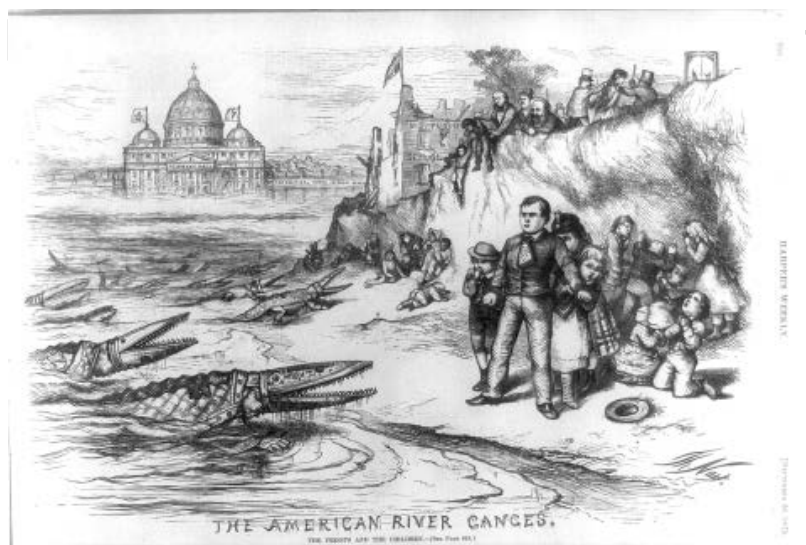
⁴ *Id.*, at 110 (emphasis deleted).

⁵ P. Hamburger, *Separation of Church and State* 206 (2002).

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of the country.’” C. Glenn, *The Myth of the Common School* 69 (1988) (Glenn) (quoting S. Morse, *Foreign Conspiracy Against the Liberties of the United States* (1835)). With a Catholic school breaking ground in New York City, the *New York Times* ran an article titled “Sectarian Education. Anti-Public School Crusade. Aggressive Attitude of the Roman Catholic Clergy—The Terrors of the Church Threatened.” *N. Y. Times*, Aug. 24, 1873, p. 8. The project, the article concluded, would cause “intense anxiety by all who are interested in upholding the admirable system of public school education.” *Ibid.*

The feelings of the day are perhaps best encapsulated by this famous cartoon, published in *Harper’s Weekly* in 1871, which depicts Catholic priests as crocodiles slithering hungrily toward American children as a public school crumbles in the background:



The resulting wave of state laws withholding public aid from “sectarian” schools cannot be understood outside this context. Indeed, there are stronger reasons for considering

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original motivations here than in *Ramos* because, unlike the neutral language of Louisiana’s and Oregon’s nonunanimity rules, Montana’s no-aid provision retains the bigoted code language used throughout State Blaine Amendments.

The failed Blaine Amendment would have prohibited any public funds or lands devoted to schooling from “ever be[ing] under the control of any religious sect.” 4 Cong. Rec. 205 (1875). As originally adopted, Montana’s Constitution prohibited the state and local governments from “ever mak[ing,] directly or indirectly, any appropriation” for “any sectarian purpose” or “to aid in the support of any school . . . controlled in whole or in part by any church, sect or denomination whatever.” Mont. Const., Art. XI, § 8 (1889). At the time, “it was an open secret that ‘sectarian’ was code for ‘Catholic.’” *Mitchell*, 530 U.S., at 828 (plurality opinion). Dictionaries defined a “sectarian” as a member “of a party in religion which has separated itself from the established church, or which holds tenets different from those of the prevailing denomination in a kingdom or state”—a heretic. N. Webster, *An American Dictionary of the English Language* (1828); see also Independence Institute Brief 9–16 (collecting several similar definitions). Newspapers throughout the country, including in Montana, used the word in similarly pejorative fashion. See *id.*, at 17–26 (collecting several articles). The term was likewise used against Mormons and Jews.⁶

Backers of the Blaine Amendment either held nativist views or capitalized on them. When Blaine introduced the amendment, *The Nation* reported that it was “a Constitutional amendment directed against the Catholics”—while surmising that Blaine, whose Presidential ambitions were known, sought “to use it in the campaign to catch anti-

⁶See Natelson, *Why Nineteenth Century Bans on “Sectarian” Aid Are Facially Unconstitutional: New Evidence on Plain Meaning*, 19 *Federalist Soc. Rev.* 98, 104 (2018).